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Case Number: 24TRCV01438 Hearing Date: September 3, 2026 Dept: P

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. P

DANIELLE IMBRIALE and GENO IMBRIALE, individually and as Successors in Interest to MICHAEL IMBRIALE,

Plaintiffs

Case No.:

24TRCV01438

vs.

[Tentative] RULING RE:

MOTION FOR SUMMARY JUDGMENT

PROVIDENCE HEALTH SYSTEM – SOUTHERN CALIFORNIA dba PROVIDENCE LITTLE COMPANY OF MARY
MEDICAL CENTER TORRANCE; DONNA RICHEY, M.D.; CHRISTOPHER MEILLUR, M.D.; JULIE ANN OATES, CNM; and
DOES 1-100, inclusive,

Defendants.

Hearing Date: September 3, 2026

Department P, Judge David K. Reinert

Motion for Summary Judgment

Moving Party: Defendant Christopher Meilleur, M.D., erroneously sued as Christopher Meillur, M.D.

Responding Party: Plaintiffs Danielle Imbriale and Geno Imbriale, individually and as Successors in Interest to Michael Imbriale

RULING

The court considered the moving papers, oppositions, and replies. Dr. Meilleur's Motion for Summary Judgment is GRANTED.

PROCEDURAL BACKGROUND

On April 26, 2024, Plaintiffs Danielle Imbriale and Geno Imbriale, individually and as Successors in Interest to Michael Imbriale (collectively, "Plaintiffs") filed a complaint against Defendants Providence Little Company of Mary Medical Center Torrance, Donna Richey, M.D. ("Dr. Richey"), Christopher Meilleur, M.D. ("Dr. Meilleur"), Julie Ann Oates, CNM ("CNM Oates"), and DOES 1 through 100, inclusive (collectively, "Defendants"), alleging two causes of action for: (1) Negligence—Medical Malpractice and (2) Wrongful Death.

On December 18, 2025, Defendant Providence Health System – Southern California ("Providence"), erroneously sued as Providence Little Company of Mary Medical Center Torrance, filed a motion for summary judgment. On March 19, 2026, the court continued Providence's motion pursuant to Code of Civil Procedure Section 437c(h).

On April 8, 2026, Dr. Meilleur filed the instant motion. On June 17, 2026, Plaintiffs filed an opposition. On June 26, 2026, Dr. Meilleur filed a reply. On July 7, 2026, the court granted Plaintiffs' request for a continuance.

On August 14, 2026, Plaintiffs filed a supplemental opposition to the instant motion. On August 24, 2026, Dr. Meilleur filed a reply.

FACTUAL BACKGROUND

On January 31, 2023, Plaintiff Danielle Imbriale ("Plaintiff Danielle") was admitted by Dr. Richey to Providence Little Company of Mary Medical Center in response to Plaintiff Danielle's concerns about uterine contractions which began the previous day. (UMF No. 1.) Plaintiff Danielle was obese and Group Beta Strep positive. (UMF No. 2.) Dr. Richey noted that she expected a spontaneous vaginal delivery. (UMF No. 2.) At 2:56 PM, Plaintiff Danielle experienced a spontaneous rupture of membrane and the fluid was clear. (UMF No. 4.)

At approximately 4:00 PM on January 31, 2023, Dr. Richey left the hospital and CNM Oates began taking care of Plaintiff Danielle. (UMF No. 4.) At 6:29 PM, Plaintiff Danielle began pushing with CNM Oates at her bedside. (UMF No. 5.) At 8:20 PM, Plaintiff Danielle became febrile and had a temperature of 101.6 degrees, after which CNM Oates ordered Tylenol in response to Plaintiff Danielle's temperature and ampicillin and gentamicin for presumed chorioamnionitis. (UMF No. 6.)

At 9:20 PM on January 31, 2023, CNM Oates observed that meconium was present, and notified Dr. Richey at approximately 10:00 PM that a cesarian section had been called. (UMF No. 7.) Dr. Richey stated that she was on her way to the hospital. (UMF No. 7.) When Dr. Richey arrived at the hospital, she obtained the assistance of Dr. Meilleur who was working as an assistant surgeon. (UMF No. 8.) At 11:08 PM, Dr. Richey delivered a male infant via cesarian section, and the infant passed away approximately 1.5 hours later. (UMF No. 8.)

Dr. Meilleur did not provide any consultations to Dr. Richey or CNM Oates during Plaintiff Danielle's labor and only interacted with Plaintiff Danielle when Dr. Meilleur assisted Dr. Richey while she performed the cesarean section delivery. (UMF No. 9.) Dr. Meilleur did not provide any follow-up care in the hospital to Plaintiff Danielle. (UMF No. 9.)

LEGAL STANDARD

Summary judgment is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. Section 437c(c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action. (*Id.* at Section 437c(p).) A defendant may discharge this burden by furnishing either (1) affirmative evidence of the required facts or (2) discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff's case. If a defendant chooses the latter option, he or she must present evidence "and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence...." (*Aguilar, supra*, 25 Cal.4th at 865-66.)

[A] defendant may simply show the plaintiff cannot establish an essential element of the cause of action "by showing that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Id.* at 854.) Thus, rather than affirmatively disproving or negating an element (e.g., causation), a defendant moving for summary judgment has the option of presenting evidence reflecting the plaintiff does not possess evidence to prove that element. "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing" to support an essential element of his case. (*Aguilar, supra*, 25 Cal.4th at 855.) Under the latter approach, a defendant's initial evidentiary showing may "consist of the deposition testimony of the plaintiff's witnesses, the plaintiff's factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action." (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 110.) In other words, a defendant may show the plaintiff does not possess evidence to support an element of the cause of action by means of presenting the plaintiff's factually devoid discovery responses from which an absence of evidence may be reasonably inferred. (*Scheiding v. Dinwiddie Construction Co.* (1999) 69 Cal.App.4th 64, 83.)

(*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1103.)

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (*Id.* at Section 437c(p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 21.)

DISCUSSION

Moving Party's Argument

Dr. Meilleur argues that the evidence shows that he met the applicable standard of care and his conduct did not cause or contribute to Plaintiffs' injuries. Dr. Meilleur refers to the expert declaration of George T. Matsuda, M.D.

Opposing Party's Argument

Plaintiffs argue that the instant motion is premature and should be continued pursuant to CCP Section 437c(h) because discovery is incomplete. Specifically, Plaintiffs argue that essential facts are unavailable because Plaintiffs have not yet deposed Dr. Meilleur or CNM Oates. Plaintiffs also argue that the expert declaration of Cynthia Brown, M.D., creates triable issues of material fact regarding whether Dr. Meilleur violated the standard of care.

Reply Argument

Dr. Meilleur argues that Plaintiffs have failed to show that facts essential to justify Plaintiffs' opposition may exist but cannot be presented and further argues that Plaintiffs' expert's opinions are conclusory and fail to create triable issues of material fact. Dr. Meilleur argues that Plaintiffs have failed to show why they have been unable to depose CNM Oates after filing the case approximately two years ago and thus have not been diligent. Dr. Meilleur argues that Plaintiffs' expert declaration only mentions his name once, failing to show that Dr. Meilleur breached the standard of care or caused Plaintiffs' injuries.

Plaintiffs' Supplemental Opposition

Plaintiffs offer excerpts from the deposition transcript of CNM Oates and argue that the new evidence undermines Dr. Meilleur's argument that he had no involvement in or knowledge of Plaintiff Danielle's labor before the cesarean delivery. Plaintiffs argue that CNM Oates's testimony establishes facts regarding Dr. Meilleur's role as the hospitalist on duty, his presence and awareness on the labor and delivery floor, and the practice of notifying the hospitalist of high-risk patients.

Dr. Meilleur's Reply to Plaintiffs' Supplemental Opposition

Dr. Meilleur argues that Plaintiffs' new evidence fails to create a triable issue of material fact because Plaintiffs have produced no evidence showing that Dr. Meilleur was made aware of Plaintiff Danielle's status as a high-risk patient prior to the surgery and that the knowledge required Dr. Meilleur to take further action. Dr. Meilleur argues that he is not required to submit his own declaration and further argues that CNM Oates's testimony is speculative and is not specific to Dr. Meilleur.

Merits of the Motion

A. Medical Malpractice: Standard of Care

"The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage." (*Chakalis v. Elevator Solutions, Inc.* (2012) 205 Cal.App.4th 1557, 1571.)

"Both the standard of care and defendants' breach must normally be established by expert testimony in a medical malpractice case." (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.) Thus, in a medical malpractice case, "[w]hen a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence." (*Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984-85 (citations omitted).) An expert declaration, if uncontradicted, is conclusive proof as to the prevailing standard of care and the propriety of the particular conduct of the health care provider." (*Starr v. Mooslin* (1971) 14 Cal.App.3d 988, 999.)

Dr. Meilleur first argues that no triable issue of material fact exists as to either of Plaintiffs' causes of action because the evidence shows that Dr. Meilleur acted within the applicable standard of care at all times.

In support, Dr. Meilleur offers the expert declaration of George T. Matsuda, M.D. ("Dr. Matsuda"), an obstetrician and gynecologist licensed to practice in California. (Matsuda Decl., ¶ 1.) Dr. Matsuda bases his opinions on his review of Plaintiff Danielle's medical records, education, training, and experience. (Matsuda Decl., ¶¶ 6, 9.) Dr. Matsuda opines that Dr. Meilleur's "involvement in [Plaintiff Danielle's] Cesarean section delivery complied with the standard of care in all aspects. Dr. Meilleur provided no care or consultations to Dr. Richey and [CNM Oates] during [Plaintiff Danielle's] labor. His sole interaction with [Plaintiff Danielle] was assisting Dr. Richey when she performed the Cesarean section delivery. Dr. Meilleur also did not provide any follow-up care in the hospital to [Plaintiff Danielle]." (Matsuda Decl., ¶ 9.)

The court finds that Dr. Meilleur has met his initial burden of showing that his conduct fell within the standard of care. Next, the burden shifts to Plaintiffs to establish the existence of a triable issue of material fact.

Plaintiffs oppose the instant motion by offering the expert declaration of Cynthia Harlin Brown, M.D. ("Dr. Brown"), a physician licensed to practice medicine in Alabama. (Brown Decl., ¶ 1.) Dr. Brown is currently practicing as an obstetrician and gynecologist. (Brown Decl., ¶ 5.) Dr. Brown declares that she is "familiar with the applicable standards of care for certified nurse midwives and labor and delivery nursing staff." (Brown Decl., ¶ 6.) However, Dr. Meilleur's evidence indicates that Dr. Meilleur acted as an assistant surgeon rather than being a part of the nursing staff. (Def. Appendix Exh. A, 00015.)

Further, as Dr. Meilleur notes, Dr. Brown's declaration only mentions Dr. Meilleur by name once, in Dr. Brown's opinion that "Defendant Dr. Richey, Defendant Oates, and Defendant Meill[e]ur [violated the standard of care], in failing to timely proceed to operative delivery in a patient with a prior cesarean section and risk factors for a technically difficult repeat cesarean delivery, thereby delaying delivery until after further fetal deterioration." (Brown Decl., ¶ 11e.) Dr. Brown does not discuss Dr. Meilleur's role in providing care or treatment to Plaintiff Danielle at all or the standard of care applicable to an assistant surgeon. The court finds that Dr. Brown's declaration fails to specify how any conduct or omissions by Dr. Meilleur in particular failed to conform to the applicable standard of care.

Plaintiffs additionally offer excerpts from the deposition transcript of CNM Oates, who testified that she contacted the hospitalist in Plaintiff Danielle's case, and she believed the hospitalist was Dr. Meilleur. (Supp. Zahka Decl., Exh. 2, 72:9-18; 73:18-20.) CNM Oates further testified that "many times [the hospitalists] are aware of what's going on on the floor," and whether a hospitalist would typically be notified of a patient in labor would depend on what is occurring on the labor and delivery floor. (Supp. Zahka Decl., Exh. 2, 74:5-21.) CNM Oates also testified that a hospitalist must be notified if a patient is undergoing a trial of labor after cesarean, which Plaintiff Danielle was undergoing. (Supp. Zahka Decl., Exh. 2, 76:6-14.)

The court finds that CNM Oates's deposition testimony is insufficient to enable Plaintiffs to meet their burden of establishing that a triable issue of material fact exists as to whether Dr. Meilleur breached the applicable standard of care. Plaintiffs have not presented contradictory expert testimony, and the court has found that neither Dr. Brown's declaration nor CNM Oates's deposition testimony discusses conduct or omissions by Dr. Meilleur specifically.

Therefore, the court concludes that Plaintiffs have failed to meet their burden of showing that there is a triable issue of material fact as to whether Dr. Meilleur's conduct met the applicable standard of care.

B. Medical Malpractice: Causation

Even if Plaintiffs had met their burden regarding the applicable standard of care, the court would conclude that Plaintiffs fail to meet their burden regarding the causation element of their Medical Malpractice cause of action.

The proximate causation element should be based upon whether defendant's conduct was a "substantial factor" in bringing about the plaintiff's injuries. (Mitchell v. Gonzales (1991) 54 Cal.3d 1041, 1053.) Furthermore, the causation "must be proven within a reasonable medical probability based on competent expert testimony. Mere possibility alone is insufficient to establish a prima facie case." (Jones v. Ortho Pharmaceutical Corporation, et al. (1985) 163 Cal.App.3d 396, 402-403.)

In support of Dr. Meilleur's argument that no triable issues of material fact exist as to whether he caused or contributed to Plaintiffs' injuries, Dr. Meilleur again offers the declaration of Dr. Matsuda. Dr. Matsuda opines that "to a reasonable degree of probability, Dr. Meilleur did not cause or contribute to [Plaintiff Danielle's] injuries, or the death of her baby because Dr. Meilleur's sole involvement in [Plaintiff Danielle's] care was assisting Dr. Richey with the Cesarean section delivery, which was performed appropriately and complied with the standard of care for a Cesarean section surgery." (Matsuda Decl., ¶ 9.)

The court finds that Dr. Meilleur has met his burden of showing that no triable issue of material fact exists as to whether his conduct was a substantial factor in bringing about Plaintiffs' injuries.

Plaintiffs again offer the declaration of Dr. Brown, who opines that "had the cesarean section been called by 21:20, more likely than not Michael Imbriale would have been delivered in materially improved condition and would not have died." (Brown Decl., ¶ 12c.)

The court refers to its previous discussion regarding the Brown Declaration, which fails to create a triable issue of material fact because Dr. Brown has not discussed any conduct by Dr. Meilleur specifically, and thus Dr. Brown's opinions regarding Dr. Meilleur are generalized and vague. The court has reviewed the excerpts from CNM Oates's deposition transcript and has found no testimony regarding any acts or omissions by Dr. Meilleur. Furthermore, the excerpts from CNM Oates's deposition transcript do not provide the requisite expert testimony.

Therefore, the court concludes that Plaintiffs have failed to meet their burden of establishing that a triable issue of material fact exists as to the causation element of Plaintiffs' causes of action.

C. Wrongful Death

"The elements of a cause of action for wrongful death are a tort, such as negligence, and resulting death." (Lopez v. City of Los Angeles (2011) 196 Cal.App.4th 675, 685.)

Because the court has previously concluded that Plaintiffs have not met their burden of establishing the existence of a triable issue of material fact as to Plaintiffs' underlying cause of action for Medical Malpractice, the court finds that Plaintiffs are also unable to meet their burden as to their Wrongful Death cause of action.

Accordingly, Dr. Meilleur's Motion for Summary Judgment is GRANTED.

CONCLUSIONBased on the foregoing, Dr. Meilleur's Motion for Summary Judgment is GRANTED.

Moving party is ordered to give notice of ruling.

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. P

DANIELLE IMBRIALE and GENO IMBRIALE, individually and as Successors in Interest to MICHAEL IMBRIALE,

Plaintiffs

Case No.:

24TRCV01438

vs.

[Tentative] RULING RE:

MOTION FOR SUMMARY JUDGMENT

PROVIDENCE HEALTH SYSTEM – SOUTHERN CALIFORNIA dba PROVIDENCE LITTLE COMPANY OF MARY MEDICAL CENTER TORRANCE; DONNA RICHEY, M.D.; CHRISTOPHER MEILLUR, M.D.; JULIE ANN OATES, CNM; and DOES 1-100, inclusive,

Defendants.

Hearing Date: September 3, 2026

Department P, Judge David K. Reinert

Motion for Summary Judgment

Moving Party: Defendant Providence Health System – Southern California dba Providence Little Company of Mary Medical Center Torrance

Responding Party: Plaintiffs Danielle and Geno Imbriale, individually and as Successors in Interest to Michael Imbriale

RULING

The court considered the moving papers, oppositions, and replies. Providence's Motion for Summary Judgment is GRANTED.

PROCEDURAL BACKGROUND

On April 26, 2024, Plaintiffs Danielle Imbriale and Geno Imbriale, individually and as Successors in Interest to Michael Imbriale (collectively, "Plaintiffs") filed a complaint against Defendants Providence Little Company of Mary Medical Center Torrance, Donna Richey, M.D. ("Defendant Dr. Richey"), Christopher Meillur, M.D. ("Defendant Dr. Meillur"), Julie Ann Oates, CNM ("CNM Oates"), and DOES 1 through 100, inclusive (collectively, "Defendants"), alleging two causes of action for: (1) negligence—medical malpractice and (2) wrongful death.

On December 18, 2025, Defendant Providence Health System – Southern California ("Providence"), erroneously sued as Providence Little Company of Mary Medical Center Torrance, filed the instant motion. On February 27, 2026, Plaintiffs filed an opposition. On March 5, 2026, Providence filed a reply. On March 19, 2026, the court granted Plaintiffs' request for a continuance.

On August 14, 2026, Plaintiffs filed a supplemental opposition to the instant motion. On August 24, 2026, Providence filed a reply.

FACTUAL BACKGROUND

On January 31, 2023, Plaintiff Danielle Imbriale ("Plaintiff Danielle") arrived at Providence Little Company of Mary Medical Center Torrance for the labor and delivery of her and Plaintiff Geno Imbriale's son, Decedent Michael Imbriale ("Decedent"). (UMF 1.) Defendant Dr. Richey noted that Plaintiff Danielle had a prior cesarean delivery, was obese, and was group B strep positive. (UMF 2.) Defendants repeatedly monitored Decedent's fetal heart rate leading up to Decedent's delivery. (UMF 4, 6, 8, 11, 12, 13, 15, 18, 19, 21.) Prior to Decedent's delivery, Plaintiff Danielle's membranes ruptured. (UMF 5.) After Decedent's delivery, Decedent was transferred to the NICU, after which Decedent's status declined. (UMF 23-24.) Decedent passed away on February 1, 2023. (UMF 24.) On February 2, 2023, Plaintiff Danielle was discharged home in stable condition with a catheter. (UMF 25.)

LEGAL STANDARD

Summary judgment is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. section 437c(c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action. (*Id.* at §437c(p).) A defendant may discharge this burden by furnishing either (1) affirmative evidence of the required facts or (2) discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff's case. If a defendant chooses the latter option, he or she must present evidence "and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence...." (*Aguilar*, supra, 25 Cal.4th at 865-66.)

[A] defendant may simply show the plaintiff cannot establish an essential element of the cause of action "by showing that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Id.* at p. 854.) Thus, rather than affirmatively disproving or negating an element (e.g., causation), a defendant moving for summary judgment has the option of presenting evidence reflecting the plaintiff does not possess evidence to prove that element. "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence—as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing" to support an essential element of his case. (*Aguilar*, supra, at p. 855.) Under the latter approach, a defendant's initial evidentiary showing may "consist of the deposition testimony of the plaintiff's witnesses, the plaintiff's factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action." (*Lona v. Citibank, N.A.*, supra, 202 Cal.App.4th at p. 110.) In other words, a defendant may show the plaintiff does not possess evidence to support an element of the cause of action by means of presenting the plaintiff's factually devoid discovery responses from which an absence of evidence may be reasonably inferred. (*Scheiding v. Dinwiddie Construction Co.* (1999) 69 Cal.App.4th 64, 83.)

(Leyva v. Garcia (2018) 20 Cal.App.5th 1095, 1103.)

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Id. at §437c(p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

DISCUSSION

Moving Party's Argument

Providence argues that Plaintiffs cannot show that triable issues of material fact exist as to either of Plaintiffs' causes of action because expert testimony establishes that Providence and its agents and employees met the applicable standard of care. Providence specifically argues that Plaintiffs cannot establish the "breach of duty" or "causation" elements of their medical malpractice cause of action and their related wrongful death cause of action, which is dependent upon Plaintiffs' medical malpractice cause of action. Providence argues that Nurse Castile's expert declaration indicates that Providence and its nurses met the reasonable nursing standard of care and that Providence did not commit any negligent act or omission.

Opposing Party's Argument

In opposition, Plaintiffs argue that the instant motion is premature because no depositions of defendant healthcare providers have been taken and expert disclosures are not soon to be due. Plaintiffs further argue that Providence only addresses the applicable standard of care for labor and delivery nurses, and disregards the care provided by the certified nurse midwife ("CNM") and obstetricians. Here, Plaintiffs argue that there is a triable issue of material fact regarding whether Defendants Dr. Richey, Dr. Meillur, and CNM Oates are considered agents of Providence. Plaintiffs request that in the alternative to denying the instant motion, the court continue the motion because Plaintiffs have not yet deposed defendant healthcare providers and expert discovery has not yet occurred. Plaintiffs further argue that the expert declaration of Cynthia Brown, M.D., establishes triable issues of material fact as to whether Providence's healthcare providers breached the applicable standards of care and whether the causation element of Plaintiffs' medical malpractice cause of action has been met.

Reply Argument

Providence argues that Plaintiffs have failed to present any contrary nursing expert testimony demonstrating that the care provided to Plaintiffs by Providence's nurses fell below the applicable standard of care and was the legal cause of Plaintiffs' injuries. Providence further argues that the instant motion is not premature because the complaint was filed on April 26, 2024, and discovery has been ongoing since, such that Plaintiffs' request for a continuance is not justified. As to Plaintiffs' expert declaration, Providence argues that Dr. Cynthia Brown is not qualified to render an expert opinion regarding the standard of care applicable to nurses because she does not state that she has any experience working or training as a nurse in labor and delivery. Further, Providence argues that Plaintiffs have not established that any physicians involved in Plaintiffs' care were employees or agents of Providence or that Plaintiffs justifiably or reasonably relied on any alleged employment or agency status of defendant physicians or the CNM. In arguing that there is no triable issue of material fact regarding whether the non-nurse providers involved in Plaintiffs' care were agents of Providence, Providence points to evidence indicating that Plaintiff Danielle had a preexisting prenatal relationship with her obstetric providers before her admission to Providence's hospital.

Plaintiffs' Supplemental Opposition

Plaintiffs offer excerpts from the deposition transcript of CNM Oates and argue that her testimony confirms that primary labor and delivery nurse Kala Datiles administered Pitocin at 9:08 PM and increased it at 9:49 PM, and CNM Oates testified that she was not at the bedside at this time and did not specifically direct the nurse to increase the Pitocin at that time. Plaintiffs argue that this evidence, together with Dr. Brown's declaration, creates a triable issue of material fact as to whether Providence's nursing staff breached the applicable standard of care.

Providence's Reply to Plaintiffs' Supplemental Opposition

Providence argues that Plaintiffs have failed to provide competent nursing expert testimony establishing the applicable standard of care or demonstrating that the medical care provided to Plaintiffs by Providence's nurses fell below the applicable standard of care. Providence argues that Dr. Brown has not demonstrated that she has the specialized knowledge, training, and experience necessary to establish the standard of care applicable to registered nurses, because Dr. Brown is an obstetrician. Providence argues that CNM Oates's testimony is not a substitute for expert testimony establishing what a reasonably prudent nurse should have done under similar circumstances.

Merits of the Motion

A. Medical Malpractice: Standard of Care

"The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage." (*Chakalis v. Elevator Solutions, Inc.* (2012) 205 Cal.App.4th 1557, 1571.)

"Both the standard of care and defendants' breach must normally be established by expert testimony in a medical malpractice case." (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.) Thus, in a medical malpractice case, "[w]hen a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence." (*Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984-85 (citations omitted).) An expert declaration, if uncontradicted, is conclusive proof as to the prevailing standard of care and the propriety of the particular conduct of the health care provider." (*Starr v. Mooslin* (1971) 14 Cal.App.3d 988, 999.)

In support of the instant motion, Providence offers the declaration of Deborah Castile, MN, CNS, NE, RNC-OB, C-EFM ("Castile"), a registered nurse licensed in the State of Oregon. (Castile Decl., ¶ 1.) Castile has been a Staff Nurse for Labor and Delivery at Oregon Health Science University since 1994. (Castile Decl., ¶ 1.) Castile bases her opinions on her education, training, experience, and review of Plaintiff Danielle's medical records and fetal monitor strips from Providence, in addition to Decedent's medical records from Providence, and the deposition transcripts of Plaintiffs, along with their complaint. (Castile Decl., ¶¶ 3-4.)

Based on her education, training, experience, and review of Plaintiffs' records, Castile opines that the care and treatment provided to Plaintiff Danielle and Decedent by Providence and its nurses met a reasonable nursing standard of care. (Castile Decl., ¶ 4.) Castile opines that Providence's nurses "provided appropriate care" to Plaintiff Danielle and Decedent during labor and delivery, by (1) appropriately evaluating Plaintiff Danielle when she arrived at Providence's hospital in active labor, (2) performing a vaginal exam upon Plaintiff Danielle's arrival, (3) placing Plaintiff Danielle on an external fetal monitor to assess Decedent's status, and (4) notifying Defendant Dr. Richey of Plaintiff Danielle's "presentation to OB triage" at Providence's hospital. (Castile Decl., ¶ 7.)

Castile further opines that Providence's nurses "appropriately managed, monitored, and evaluated" Plaintiff Danielle and Decedent "during the first stage [of] labor, including position changes and administering antibiotics." (Castile Decl., ¶ 8.) Specifically, Castile declares that Providence's nurses "timely and appropriately notified" Defendants Dr. Richey and CNM Oates of changes in Plaintiff Danielle's condition and appropriately responded to her pain needs. (Castile Decl., ¶ 8.) Castile

also opines that Decedent's fetal heart rate was appropriately monitored throughout the labor process, and that Providence's nurses "implemented appropriate nursing interventions, including IV bolus, maternal repositioning," monitoring adjustments, and notifying providers to address changes in Decedent's fetal heart tracing. (Castile Decl., ¶ 8.)

Next, Castile opines that Providence's nurses timely and appropriately carried out orders and instructions from Defendants Dr. Richey and CNM Oates during labor process, "including orders for medications and monitoring." (Castile Decl., ¶ 9.) Here, Castile declares that Providence's nurses had no reason to question any of Defendant Dr. Richey's or Defendant CNM Oates's orders and instructions. (Castile Decl., ¶ 9.)

Additionally, Castile opines that Providence's nurses provided timely and appropriate care to Plaintiff Danielle and Decedent during the second stage of the labor process and through the delivery process, "including position changes, adjusting the toco monitor and external fetal monitor, identifying fever, notifying [Defendant CNM Oates] of changes in [Plaintiff Danielle's] status including the new onset of fever, supporting [Plaintiff Danielle] while laboring down, administering antibiotics and Tylenol for maternal fever, prepping [Plaintiff Danielle] for cesarean section, and providing support and assistance during the cesarean section." (Castile Decl., ¶ 10.) Castile declares that Providence's nurses appropriately started administering Pitocin to Plaintiff Danielle pursuant to the physician's order to increase the strength and frequency of contractions and stopped when the decision for a cesarean section was made. (Castile Decl., ¶ 10.)

Therefore, according to Castile, Providence's nursing staff "appropriately managed" Plaintiff Danielle's and Decedent's care during labor and delivery, and "did not, to a reasonable degree of medical probability, commit any negligent act and/or omission." (Castile Decl., ¶ 11.)

The court finds that Castile's declaration is sufficient to allow Providence to meet its burden of showing that its nurses' conduct fell within the applicable nursing standard of care.

Next, the burden shifts to Plaintiffs to show that there is a triable issue of material fact regarding whether Providence's nurses' conduct conformed to the applicable nursing standard of care.

Plaintiffs offer the declaration of Cynthia Brown, M.D., ("Dr. Brown") a physician licensed to practice medicine in Alabama. (Brown Decl., ¶ 1.) Dr. Brown is certified by the American Board of Obstetrics and Gynecology and has practiced as an obstetrician and gynecologist since 1996. (Brown Decl., ¶¶ 4-5.) Dr. Brown declares that she is familiar with the applicable standards of care for certified nurse midwives and labor and delivery nursing staff as a result of her education, training, and experience as an obstetrician gynecologist, including "routine collaboration and supervision in labor and delivery settings where clinical duties and decision-making overlap." (Brown Decl., ¶ 6.)

Dr. Brown bases her opinions on her education, training, experience, and review of Plaintiff Danielle's medical records, Decedent's medical records, fetal monitoring strips from Providence's hospital, and the deposition transcripts of Plaintiffs Danielle Imbriale and Geno Imbriale. (Brown Decl., ¶¶ 8-9.) Dr. Brown opines that the care and treatment provided to Plaintiff Danielle and Decedent by Providence and its agents and employees "violated the standard of care." (Brown Decl., ¶ 9.)

Specifically, Dr. Brown opines that Providence's nursing staff violated the standard of care by "failing to appreciate and respond appropriately to the significance of persistent fetal tachycardia with evolving minimal variability and recurrent decelerations, including the absence of documented descent," administering oxytocin "despite a fetal heart rate baseline documented as tachycardic with minimal variability and recurrent decelerations," and increasing Plaintiff Danielle's oxytocin dose "despite persistent fetal tachycardia, minimal variability, and recurrent decelerations." (Brown Decl., ¶ 11.) Dr. Brown further opines that to a "reasonable degree of medical certainty," Defendants' departures from the standard of care caused Decedent's premature death. (Brown Decl., ¶ 12.)

"[A] nurse's conduct must not be measured by the standard of care required of a physician or surgeon, but by that of other nurses," such that testimony from a nursing expert is required in order to establish that a nurse failed to meet the applicable standard of care. (Alef v. Alta Bates Hospital (1992), 5 Cal.App.4th 208, 215; see also Lattimore v. Dickey (2015), 239

Cal.App.4th 959, 969.) Here, Dr. Brown does not declare that she has ever practiced as a nurse in labor and delivery or received education or training regarding nursing, such that her declaration lacks foundation for her opinion that the conduct of Providence's nursing staff fell below the applicable nursing standard of care.

Plaintiffs also offer excerpts from the deposition transcript of CNM Oates, who testified that she was not at Plaintiff Danielle's bedside when "the nurse increased the Pitocin" thirty minutes after it was started, based off of the standing order. (Supp. Zahka Decl., Exh. 4, 36:11-25.) The court finds that CNM Oates's testimony is insufficient to enable Plaintiffs to meet their burden of establishing a triable issue of material fact as to whether the conduct of Providence's nursing staff conformed to the applicable nursing standard of care. As identified by Providence, Plaintiffs have failed to provide testimony from a nursing expert, as Dr. Brown has not established that she is qualified to opine on the applicable standard of care, and CNM Oates offers only factual testimony regarding a nurse's decision to increase the Pitocin.

Therefore, the court concludes that Plaintiffs have failed to meet their burden.

B. Medical Malpractice: Causation

Even if Plaintiffs had met their burden regarding the applicable standard of care, the court would conclude that Plaintiffs fail to meet their burden regarding the causation element of their Medical Malpractice cause of action.

The proximate causation element should be based upon whether defendant's conduct was a "substantial factor" in bringing about the plaintiff's injuries. (Mitchell v. Gonzales (1991) 54 Cal.3d 1041, 1053.) Furthermore, the causation "must be proven within a reasonable medical probability based on competent expert testimony. Mere possibility alone is insufficient to establish a prima facie case." (Jones v. Ortho Pharmaceutical Corporation, et al. (1985) 163 Cal.App.3d 396, 402-403.)

In her declaration, Castile opines that Providence and its nurses "did not, to a reasonable degree of medical probability, commit any negligent act and/or omission." (Castile Decl., ¶ 11.) The court finds that Providence has met its burden of showing that no triable issue of material fact exists as to whether the conduct of its nursing staff was a substantial factor in bringing about Plaintiffs' injuries.

The court refers to its previous discussion in which it concluded that Dr. Brown's declaration is insufficient to enable Plaintiffs to carry their burden of establishing the existence of a triable issue of material fact, because Dr. Brown has not established that she is a nursing expert. (Alef, supra, 5 Cal.App.4th at 215.) The court has also previously concluded that CNM Oates's deposition testimony does not provide the requisite nursing expert testimony.

Therefore, the court finds that Plaintiffs have failed to meet their burden of establishing the existence of a triable issue of material fact as to the causation element of their Medical Malpractice cause of action.

C. Wrongful Death

"The elements of a cause of action for wrongful death are a tort, such as negligence, and resulting death." (Lopez v. City of Los Angeles (2011) 196 Cal.App.4th 675, 685.)

Because the court has previously concluded that Plaintiffs have not met their burden of establishing the existence of a triable issue of material fact as to Plaintiffs' underlying cause of action for Medical Malpractice, the court finds that Plaintiffs are also unable to meet their burden as to their Wrongful Death cause of action.

Accordingly, Providence's Motion for Summary Judgment is GRANTED.

CONCLUSION

Based on the foregoing, Providence's Motion for Summary Judgment is GRANTED.

Prevailing party on motion is ordered to give notice of ruling.